

24STLC06660 24STLC06660

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-04

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Case Number: 24STLC06660 Hearing Date: September 4, 2026 Dept: 26

TENTATIVE RULING:

Judgment Creditor Brandon TV, LLC's Motion to Quash and Recall Bench Warrant is granted.

Analysis:

On September 19, 2024, Brandon TV, LLC ("Judgment Creditor") filed the instant action against Sync Brokerage, Inc. and Andres G. Hoyos Rodriguez ("Judgment Debtors"). Judgment Creditor obtained a default judgment against Judgment Debtor Sync Brokerage on April 18, 2025 and against Judgment Debtor Rodriguez on December 30, 2025.

Pursuant to Judgment Creditor's Application and Order for Appearance and Examination, the Court ordered Judgment Debtor Rodriguez to appear for examination on March 5, 2026. Judgment Debtor Rodriguez failed to appear on March 5, 2026 and the Court ordered and held a bench warrant until April 27, 2026. (Minute Order, 03/05/26.) On April 27, 2026, upon Judgment Debtor Rodriguez's failure to appear, the Court issued the bench warrant. (Minute Order, 04/27/26.)

On May 6, 2026, Judgment Creditor filed Acknowledgements of Satisfaction of Judgment as to each Judgment Debtor. Judgment Creditor filed and served the instant Motion to Quash and Recall Bench Warrant on June 4, 2026. No opposition has been filed to date.

Discussion

Judgment Creditor moves to quash and recall the bench

warrant issued against Judgment Debtor Rodriguez pursuant to the Court's inherent authority and its statutory authority to "amend and control its process and orders so as to make them conform to law and justice" under Code of Civil Procedure section 128, subdivision (a)(8). As Judgment Creditor points out, the purpose of the bench warrant was to effectuate the judgment debtor examination as part of its right to enforce the judgment. (Code Civ. Proc., § 708.110.) Once the judgment has been paid in full, those enforcement rights are moot. The judgment in this action has been satisfied in full, as demonstrated by the filing of the Acknowledgments of Satisfaction of Judgment. Therefore, the Court finds that enforcement of the judgment is no longer necessary and the bench warrant should be quashed and recalled.

Conclusion

Judgment Creditor Brandon TV, LLC's Motion to Quash and Recall Bench Warrant is granted.

Moving party to give notice.